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25-CIV-09703

MICHAEL KARPOVICH TEMPLETON VS. TOWN OF ATHERTON, ET AL

**MICHAEL KARPOVICH TEMPLETON
TOWN OF ATHERTON**

**PRO SE
MONA G EBRAHIMI**

PETITIONER MICHAEL TEMPLETON'S WRIT OF ADMINISTRATIVE MANDAMUS CCP 1094.5

TENTATIVE RULING:

Considering the court's previous ruling, the court will not rule on this matter at this time.

**UD LAW AND MOTION CALENDAR
THURSDAY, AUGUST 13, 2026**

2:00 PM

LINE: 1

26-UDL-00113

ALVERNAZ PARTNERS, LLC VS. NICOLE GRUNBERG, ET AL

ALVERNAZ PARTNERS, LLC
NICOLE GRUNBERG

TODD L SCHULTZ
PRO SE

DEFENDANT NICOLE GRUNBERG'S DEMURRER TO COMPLAINT FOR UNLAWFUL DETAINER

TENTATIVE RULING:

For the reasons stated below, Defendant Nicole Grunberg's Demurrer to Plaintiff Alvernaz Partners, LLC's Complaint is **OVERRULED**.

BACKGROUND

This residential unlawful detainer action concerns the property located at 936 Easton Avenue, San Bruno, California 94066 (the "Property"). Plaintiff Alvernaz Partners, LLC ("Plaintiff") alleges that it purchased the Property and perfected title on January 6, 2026, and that Defendant Nicole Grunberg ("Defendant") remains in possession of the Property.

The Complaint alleges that, on or about May 1, 2025, Defendant entered into a written lease with Plaintiff's predecessor in interest for a tenancy through April 30, 2026, at monthly rent of \$2,100, payable on the first day of each month. (Complaint, ¶ 6.) Plaintiff further alleges that it served Defendant with a Three-Day Notice to Pay Rent or Quit on January 17, 2026, demanding payment of \$1,726 in rent, that Defendant failed to comply with the Notice, and that the Notice included an election of forfeiture. (Id., ¶ 9 & Exh. 1.)

Defendant demurs pursuant to Code of Civil Procedure section 430.10, subdivisions (e) and (f), arguing principally that the Complaint: (1) fails to attach the written lease or sufficiently plead its operative terms; (2) fails to allege that the lease permits forfeiture for nonpayment of rent; (3) fails to allege facts establishing that \$1,726 was properly due under the lease; (4) fails to allege Plaintiff's right to enforce the lease as successor to the original landlord; and (5) is uncertain.

THE COMPLAINT IS NOT REQUIRED TO ATTACH THE WRITTEN LEASE

An unlawful detainer action is a statutory proceeding, and the pleading requirements are governed by Code of Civil Procedure sections 1161 and 1166. (*De La Vara v. Municipal Court* (1979) 98 Cal.App.3d 638, 641–642.)

Code of Civil Procedure section 1166 generally requires a plaintiff in a residential unlawful detainer action to attach a written lease or rental agreement. (Code Civ. Proc., § 1166, subd. (d)(1)(B).) The statute expressly provides, however, that the written agreement need not be attached when the action is “based solely on subdivision (2) of Section 1161”—i.e., nonpayment of rent. (Id., subd. (d)(1)(B)(iii).)

Here, Plaintiff alleges that this action is based solely on Defendant’s failure to pay rent under Code of Civil Procedure section 1161, subdivision (2). (Complaint, ¶ 6.) Plaintiff therefore was not required to attach the written lease to the Complaint.

Nor does the absence of the written lease require Plaintiff to plead every provision of the agreement. Section 1166 requires the Complaint to set forth the facts upon which Plaintiff seeks recovery and, in an action under section 1161, subdivision (2), to state the amount of rent in default. (Code Civ. Proc., § 1166, subd. (a)(2), (4).) The Complaint alleges a written lease commencing May 1, 2025 and continuing through April 30, 2026, monthly rent of \$2,100 payable on the first day of each month, Defendant’s default in payment of rent, service of the statutory Three-Day Notice to Pay Rent or Quit, the amount of rent demanded, and Defendant’s continued possession. These allegations are sufficient for pleading purposes.

PLAINTIFF WAS NOT REQUIRED TO ALLEGE THAT THE LEASE CONTAINS A FORFEITURE CLAUSE

Defendant also argues that the Complaint is deficient because it does not allege that the written lease itself authorizes forfeiture for nonpayment of rent. The argument is not supported by California law.

Although at common law nonpayment of rent did not authorize forfeiture in the absence of a contractual forfeiture provision, California’s unlawful detainer statutes independently confer upon a lessor the right to declare a forfeiture for nonpayment of rent, even when the lease contains no provision authorizing forfeiture. (*Sexton v. Nelson* (1964) 228 Cal.App.2d 248, 256–257.) That statutory right is exercised through compliance with the requirements governing unlawful detainer for nonpayment of rent. (Ibid.; Code Civ. Proc., § 1161, subd. (2).)

Consistent with that rule, Code of Civil Procedure section 1174, subdivision (a), provides that when an unlawful detainer proceeding is based on default in the payment of rent, the judgment shall declare a forfeiture of the lease or rental agreement if the notice required by section 1161 states the landlord’s election to declare a forfeiture. The critical forfeiture allegation therefore concerns the notice, not the existence of a forfeiture clause in the underlying lease. (See *Briggs v. Electronic Memories & Magnetics Corp.* (1975) 53 Cal.App.3d 900, 905.)

Here, the Complaint expressly alleges that the Three-Day Notice included an election of forfeiture, and the Notice is attached to the Complaint. (Complaint, ¶ 9.d.–e. & Exh. 1.) The Complaint therefore does not fail to state a cause of action merely because it does not allege that the lease itself contains a forfeiture clause.

PLAINTIFF ADEQUATELY ALLEGES ITS RIGHT TO ENFORCE THE TENANCY

Defendant further contends that Plaintiff has not alleged its right to enforce the lease because Plaintiff was not the original landlord.

The Complaint alleges that Defendant entered into the written lease with Plaintiff's predecessor in interest and that Plaintiff subsequently purchased the Property and perfected title on January 6, 2026. (Complaint, ¶ 6.) Code of Civil Procedure section 1161, subdivision (2), expressly recognizes the right of a landlord "or the successor in estate of the landlord" to pursue unlawful detainer following a tenant's default in the payment of rent.

At the pleading stage, Plaintiff's allegations that it acquired title to the Property from Defendant's former landlord and thereby became the landlord's successor in interest are sufficient to allege Plaintiff's right to pursue the present unlawful detainer action.

THE COMPLAINT ADEQUATELY ALLEGES THE AMOUNT OF RENT IN DEFAULT

Defendant also argues that the Complaint does not adequately allege why the amount demanded in the Three-Day Notice—\$1,726—was due.

Code of Civil Procedure section 1166, subdivision (a)(4), requires a complaint based on nonpayment of rent to "state the amount of rent in default." The Complaint does so. It alleges monthly rent of \$2,100 and alleges that \$1,726 in rent was due when the Three-Day Notice was served. (Complaint, ¶¶ 6, 13–14 & Exh. 1.)

Nothing on the face of the Complaint or its attached Notice establishes that the \$1,726 demand was necessarily incorrect. Whether that amount was actually due under the tenancy is a factual matter that cannot be resolved against Plaintiff on demurrer merely because the amount demanded is less than the stated monthly rent. The Complaint sufficiently alleges the amount claimed to have been in default.

THE COMPLAINT IS NOT UNCERTAIN

Finally, the Court does not find the Complaint uncertain within the meaning of Code of Civil Procedure section 430.10, subdivision (f).

Demurrers for uncertainty are disfavored and are sustained only where the pleading is so incomprehensible that the defendant cannot reasonably respond. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

The Complaint identifies the Property, the parties, the nature and duration of the tenancy, the monthly rental obligation, the amount allegedly in default, the Three-Day Notice upon which the action is based, and Plaintiff's asserted basis for the right to possession. Defendant can reasonably determine the allegations against her and respond to them.

DISPOSITION

Accordingly, Defendant Nicole Grunberg's Demurrer to Plaintiff Alvernaz Partners, LLC's Complaint pursuant to Code of Civil Procedure section 430.10, subdivisions (e) and (f), is **OVERRULED**.

Defendant shall file and serve her responsive pleading within the time prescribed by law.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Plaintiff, as the prevailing party on the Demurrer, shall prepare a written order consistent with the Court's ruling for the Court's signature pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling as required by Code of Civil Procedure section 1019.5.

2:00 PM

LINE: 2

26-UDL-00208

BRIDGE PROPERTY MANAGEMENT COMPANY VS. ARMANDO VEGA PACHECO, ET AL

**BRIDGE PROPERTY MANAGEMENT COMPANY
ARMANDO VEGA PACHECO**

**MERCEDES A. GAVIN
PRO SE**

**PLAINTIFF BRIDGE PROPERTY MANAGEMENT COMPANY'S MOTION FOR TERMINATING SANCTIONS AGAINST
DEFENDANTS ARMANDO VEGA PACHECO, ALEXANDER CHAPARRO RODRIGUEZ AND YENCI LEGUIZAMON**

TENTATIVE RULING:

The unopposed motion is **DENIED WITHOUT PREJUDICE** for lack of proof that Defendants received notice of the correct hearing date.

The motion was filed on June 30, 2026. The proof of service indicates that the motion was served by mail that same day. However, at the time of filing, the hearing date stated in the notice of motion was changed from July 9, 2026, to August 13, 2026. It is therefore unclear whether Defendants were served with the original notice reflecting the July 9, 2026 hearing date or with a revised notice reflecting the August 13, 2026 hearing date.

To date, the Court's record does not reflect the filing or service of an amended notice of motion advising Defendants of the August 13, 2026 hearing date. Accordingly, the Court cannot determine that Defendants received proper notice of the hearing, and the motion is denied without prejudice.

Posted: 3:00 P.M.
